

26STCV00555 26STCV00555

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BACKGROUND

This is a premises liability matter.

Plaintiff Marco Ivan Velasquez Pineda alleges he sustained physical injuries and damages when walking up the staircase at the Westland Apartments.

On January 8, 2026, Pineda filed a complaint against Defendants Amusement Industry, Inc., Westland Real Estate Group, and Westland FVDD 2022, LLC. The complaint alleges two causes of action: (1) Premises Liability; and (2) General Negligence.

On May 6, 2026, Westland FVDD 2022, LLC (hereinafter referred to as "Cross-Complainant") filed a first amended cross-complaint ("FAXC") against Pineda, Hugo Ortiz, and Elva Longwood. The FAXC alleges seven causes of action.

On May 22, 2026, Pineda (hereinafter referred to as "Cross-Defendant") filed a demurrer to the 4th and 5th Causes of Action in the FAXC against Pineda. An accompanying Motion to Strike was also filed.

On September 9, 2026, Cross-Complainant filed an opposition.

On September 15, 2026, Cross-Defendant filed a reply.

TENTATIVE RULING

Cross-Defendant's demurrer

is SUSTAINED. Cross-Complainant is granted leave to amend as stated herein.

Cross-Defendant's Motion

to Strike is GRANTED. Cross-Complainant is granted leave to amend.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is

sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; see also Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet

and Confer

Before filing a demurrer

or motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

“A determination by the

court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, the parties could

not meet and confer in person, by telephone, or by video conference. (See Michael Decl., Exhs. A-B.) Thus, the meet and confer requirement has not been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).) However, the Court shall consider the merits of the demurrer and Motion to Strike.

II.

Trespass/Waste/

Impairment of Interest of Real Property (4th Cause of Action)

The Court holds that the

FAXC does not state a cause of action for trespass against Cross-Defendant.

To establish a cause of

action for trespass, the plaintiff must show: (1) ownership, or control, of the property; (2) defendant's intentional, reckless, or negligent, entry onto property; (3) lack of permission for entry, or actions in excess of permission; (4) harm; and that (5) the actions were a substantial factor in causing harm. (See *Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262.)

Trespass claims are

designed to protect possessory interests in land from unlawful interference, not necessarily protect ownership interests in said land. (See *Smith v. Cap Concrete, Inc.* (1982) 133 Cal.App.3d 769, 774.) Thus, “[t]he proper plaintiff in an action for trespass to real property is the person in actual possession. . . .” (Ibid.) Thus, out-of-possession property owners cannot maintain a trespass action against a tenant, or its guests, unless there

is an injury which damages their ownership interests. (See *Smith v. Cap Concrete, Inc.* (1982) 133 Cal.App.3d 769, 774.)

Additionally, when a tenancy is established, the tenant gains the right to exclusive possession as against all others, including the property owner. (See *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1040.) Given this exclusive right, tenants necessarily also have the right to invite guests. “Whenever a person is a guest or invitee of a tenant, and as such enters upon a part of the premises so reserved for common use, and which is under the landlord’s control, he is assumed by law to be an invitee of the landlord.” (*Yazzolino v. Jones* (1957) 153 Cal.App.2d 626, 633.) Accordingly, “[o]ne who leases a part of the premises, retaining control of other portions such as common walks or passages which the tenant is entitled to use, is subject to liability to persons lawfully on the land with the consent of the tenant for damages caused by a dangerous condition existing on the part under the owner’s control, if by reasonable care he could have discovered the condition and made it safe.” (Id. at p. 632.)

Here, given the foregoing and based on the allegations in the FAXC, Cross-Complainant cannot maintain this cause of action against Cross-Defendant. First, it appears from the allegations that Cross-Defendant was on the subject premises with the consent of Ortiz & Longwood, the named tenants of the lease agreement. (See FAXC, ¶¶ 25-26, 67.) Therefore, Cross-Complainant was authorized to access the subject premises and common areas. (See *Yazzolino v. Jones* (1957) 153 Cal.App.2d 626, 632-633.) Thus, the FAXC does not allege facts which support the third element to this cause of action. (See *Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262.)

Second, although the subject incident occurred in the property’s common areas, Cross-Defendant was still entitled to access and use said areas if he had the tenants’ consent. (See *Yazzolino v. Jones* (1957) 153 Cal.App.2d 626, 633.)

And lastly, Ortiz & Longwood’s purported breach of the lease agreement in giving consent does not give rise to a trespass claim against Cross-Defendant. (See FAXC, ¶¶ 24,26.) Ultimately, it appears that Cross-Defendant was allowed onto the property with the consent of Ortiz & Longwood. (See FAXC, ¶¶ 25-26, 67.) Thus, by law, Cross-Defendant

had authorized access to the property and common areas. (See *Yazzolino v. Jones* (1957) 153 Cal.App.2d 626, 633.) Whether Cross-Defendant's visit/stay was in violation of the lease agreement is a contract dispute, not a trespass issue. So long as Cross-Defendant had Ortiz & Longwood's permission, he had authorized access to the property, and Cross-Complainant was responsible for ensuring his care as an invitee. (See *Yazzolino v. Jones* (1957) 153 Cal.App.2d 626, 633.)

For the above reasons, the FAXC cannot state a cause of action for trespass against Cross-Defendant. The demurrer to this cause of action is sustained with leave to amend only to the extent that Cross-Complainant can in good faith allege that Cross-Defendant was on the premises without consent of the tenants.

III.

Unjust

Enrichment or Restitution (5th Cause of Action)

The Court holds that the

FAXC does not state facts sufficient to support a finding that

Cross-Defendant's wrongful benefit was retained at Cross-Complainant's expense.

To state a cause of action for unjust enrichment, the plaintiff must demonstrate: (1) receipt of a benefit; (2) unjust or wrongful retention of

the benefit; and (3) at

the expense of another. (See *Peterson v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, 1593.) "There is no cause of action in California

labeled 'unjust enrichment.'" (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477.) But "[c]ommon law principles of restitution require a

party to return a benefit when the retention of such benefit would unjustly

enrich the recipient; a typical cause of action involving such remedy is

'quasi-contract.'" (*Ibid.*) "However, as a matter of law, a

quasi-contract action for unjust enrichment does not lie where, as here, express binding agreements exist

and define the parties' rights." (*California Medical Association v.*

Aetna U.S. Healthcare of California (2001)

94 Cal.App.4th 151, 172.)

Here, Cross-Complainant

does not allege that it entered into any agreement with Cross-Defendant. (See

generally FAXC.) Furthermore, Cross-Complainant alleges that Cross-Defendant enriched

himself at Cross-Complainant's expense by obtaining residence at a property he

was not permitted to occupy. (See FAXC, ¶ 82.) In turn, this caused Cross-Complainant to lose out on additional economic benefit from the rental unit, the ability to enforce the 10% rental increase, and offset the cost associated with Plaintiff's occupancy of the unit. (See id. at ¶¶ 83-84.)

Despite the foregoing allegations, the FAXC does not state that Cross-Defendant's alleged sublease/residency was at Cross-Complainant's expense. Cross-Complainant does not allege that Cross-Defendant's sublease/residency directly led to any financial harm or costs (i.e., missed rent payments or unpaid utilities). Rather, per the FAXC, Cross-Complainant simply lost out on additional economic benefit from the rental unit, the ability to enforce the 10% rental increase, and offset the costs associated with Cross-Defendant's purported occupancy of the unit. (See FAXC, ¶¶ 83-84.) However, these are not "expenses" stemming from Plaintiff's purported sublease or residency. Rather, they stem from Ortiz and Longwood's alleged breach of the lease agreement and represent a gain Cross-Complainant asserts it could have had had it known Cross-Defendant resided in the premises. Had Ortiz and Longwood informed Cross-Complainant of Cross-Defendant's purported sublease, then Cross-Complainant could have increased the rent. Therefore, although Ortiz and Longwood may not have had authority to sublease to Cross-Defendant, the FAXC does not sufficiently allege that Cross-Defendant received a benefit at Cross-Complainant's expense.

Accordingly, the demurrer to this cause of action is sustained. Cross-Complainant is granted leave to amend.

IV.

Motion
to Strike

The Court will strike Cross-Complainant's request for damages pursuant to Civil Code section 3334 and request for injunctive relief.

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

Civil Code section 3334 damages are only awarded for “detriment caused by the wrongful occupation of real property. . . .” (Civ. Code, § 3334, subd. (a).) Here, the Court already established that the FAXC does not state that Cross-Defendant’s purported sublease was at Cross-Complainant’s expense or detriment. (See § III.) Accordingly, the Court will strike Cross-Complainant’s request for damages under Civil Code section 3334.

The Court will also strike Cross-Complainant’s request for injunctive relief. As previously established, the FAXC does not state a cause of action for trespass, let alone allege that Cross-Defendant continues to “trespass” on the subject property. (See § II.)

CONCLUSION

For the foregoing reasons, Cross-Defendant’s demurrer is SUSTAINED. Cross-Complainant is granted leave to amend as stated herein.

Cross-Defendant’s Motion to Strike is GRANTED. Cross-Complainant is granted leave to amend.